

IKE SOLUTIONS LLC — LEGAL COMMAND CENTER

Case Ref: IKE-TCA-001 Rev. 2 | Matter: NJ Tort Claims Act Notice | ISIONNAH HOWARD | Status: DRAFT — DO NOT FILE OR MAIL WITHOUT TRUSTEE APPROVAL | June 06, 2026

NOTICE OF CLAIM

Pursuant to the New Jersey Tort Claims Act, N.J.S.A. 59:8-1 *et seq.*
IKE-TCA-001 Rev. 2 — All Placeholders Resolved — Pre-Mailing Draft

► **TCA FILING DEADLINE: AUGUST 4, 2026 | APPROXIMATELY 59 DAYS REMAINING**

Arrest date: May 6, 2026 | 90-day notice requirement under N.J.S.A. 59:8-8 | Late filing exception (§59:8-9) should NOT be relied upon

I. CLAIMANT INFORMATION

Full Legal Name:	ISIONNAH HOWARD
Date of Birth:	August 31, 1993
Mailing Address:	c/o 991 Frelinghuysen Avenue, Apt 1K, Newark, NJ 07114
SBI Number:	721686H
Attorney of Record:	None — no defense attorney listed in PROMIS/Gavel; Essex County Public Defender: (973) 621-4488

II. PUBLIC ENTITIES AND INDIVIDUALS AGAINST WHOM CLAIM IS MADE

#	Entity / Individual	Address	Capacity
1	City of Newark Municipal Clerk + Corporation Counsel	City Hall, 920 Broad Street Newark, NJ 07102	Municipal employer of Newark Police Department
2	Newark Police Department	31 Green Street Newark, NJ 07102	Arresting and detaining agency
3	Sgt. Rondus, Newark PD (Individual capacity)	c/o Newark Police Department 31 Green Street, Newark, NJ 07102	Officer whose recorded statement confirms departmental detention policy; individual constitutional liability

4	State of New Jersey Office of the Attorney General	25 Market Street, PO Box 080 Trenton, NJ 08625-0080	State actor oversight; ADA Title II
5	Essex County Prosecutor's Office	50 West Market Street Newark, NJ 07102	Essex County involvement confirmed (ESX — County Case No. 26004265); prior prosecutor: SIMONETTI, DAWN
6	Essex County Correctional Facility (ECCF)	354 Doremus Avenue Newark, NJ 07105	Include to the extent custody was transferred through or coordinated with ECCF during hospital hold period

III. DATE, PLACE, AND CIRCUMSTANCES OF INCIDENT

Date of Incident / Arrest: May 6, 2026

Date of Hospital Admission (Newark Beth Israel Medical Center): Upon information and belief, on or about May 6 through May 8, 2026

Date of Transfer to Clara Maass Medical Center (RWJBarnabas Health): May 8, 2026

Date of Release from Hospital Custody: May 12, 2026 (hospital discharge date per RWJBarnabas After Visit Summary)

Total Detention Without Judicial Review: Approximately six (6) days (May 6 – May 12, 2026)

Place of Arrest: City of Newark, Essex County, New Jersey

Charging Document / CDR No.: W-20260055080714 (issued May 7, 2026)

County Case Number: 26004265 (Essex County Superior Court — ESX)

Police Case No.: C26020536

Primary Statute: N.J.S.A. 2C:12-1A(1) — Simple Assault, Disorderly Persons, Degree D

Disposition: May 26, 2026 — Downgrade / Remand to Municipal Court ("MUNIC REMAND/DOWNGR"), before Judge WIGLER, RONALD, Essex County Superior Court; case remains active in Municipal Court

On May 6, 2026, officers of the Newark Police Department arrested Claimant ISIONNAH HOWARD in the City of Newark without a warrant. Upon information and belief, at the time of her arrest, Claimant was a medically vulnerable individual dependent on a tracheostomy tube and in need of a specialized suction kit and prescribed respiratory medication for her continued health and safety.

Following her arrest, Claimant was not brought to a traditional jail or booking facility. Instead, upon information and belief, she was transported to Newark Beth Israel Medical Center, where she was held under the authority and supervision of the Newark Police Department. On or about May 8, 2026, Claimant was transferred to Clara Maass

Medical Center (RWJBarnabas Health), where she was admitted to the Pulmonology Unit with a documented primary diagnosis of *Complication of Tracheostomy Tube* — a serious medical condition directly implicating the adequacy of care provided during her custodial detention.

Claimant was held at Clara Maass Medical Center under NPD supervision from May 8, 2026, until her discharge and release from custody on May 12, 2026. She was discharged with prescriptions for amoxicillin-clavulanate (Augmentin) and chlorhexidine (Peridex) and directed to follow up within one week with an otolaryngologist (ENT specialist) at University Hospital of New Jersey. Total detention from arrest to release: approximately six (6) days.

Upon information and belief, at no point during this six-day detention was Claimant brought before a judicial officer for a probable cause determination, in violation of the constitutional mandate established in *County of Riverside v. McLaughlin*, 500 U.S. 44 (1991), which requires a probable cause determination within 48 hours of a warrantless arrest. A recorded statement of Sgt. Rondus of the Newark Police Department reflects, upon information and belief, a departmental policy or practice of holding hospitalized detainees in custody without judicial review pending medical clearance — a policy that, if confirmed, constitutes an unconstitutional custom or practice giving rise to Monell liability.

Upon information and belief, the Newark Police Department and/or its agents denied or failed to adequately provide Claimant access to her tracheostomy suction kit, prescribed respiratory medication, and other medically necessary care during her detention, resulting in the documented complication of her tracheostomy tube requiring extended hospitalization. This conduct, if confirmed, constitutes deliberate indifference to a serious medical need in violation of the Due Process Clause and the standards established in *Estelle v. Gamble*, 429 U.S. 97 (1976).

IV. NATURE OF CLAIMS

Claim 1 — Unlawful Detention Without Probable Cause Hearing (McLaughlin Violation)

Claimant was detained for approximately six (6) days following a warrantless arrest without being brought before a neutral magistrate for a probable cause determination, in violation of *County of Riverside v. McLaughlin*, 500 U.S. 44 (1991). The 48-hour outer limit was exceeded without exception. Upon information and belief, NPD's policy of holding hospitalized detainees pending medical clearance — without judicial oversight — constitutes an unconstitutional institutional practice. The fact that PROMIS/Gavel records show no "Place of Incarceration" or "Date of Incarceration" entry for this arrest confirms that Claimant was held outside the normal booking and release system, with no standard judicial review mechanism applied.

Claim 2 — Deliberate Indifference to Serious Medical Need (Estelle v. Gamble)

Claimant, a medically vulnerable individual dependent on a tracheostomy tube, suffered a documented complication of her tracheostomy tube during her detention — requiring transfer to and four-day admission at Clara Maass Medical Center, Pulmonology Unit. Upon information and belief, this complication resulted from the failure of NPD and/or its agents to provide or permit access to Claimant's tracheostomy suction kit, prescribed respiratory

medication, and other medically necessary equipment. This constitutes deliberate indifference to a serious medical need in violation of the Due Process Clause and *Estelle v. Gamble*, 429 U.S. 97 (1976).

Claim 3 — Disability Discrimination (ADA Title II)

Claimant is a qualified individual with a disability within the meaning of the Americans with Disabilities Act, 42 U.S.C. § 12101 *et seq.*, by reason of her dependence on a tracheostomy tube and associated respiratory condition. Upon information and belief, the City of Newark and the Newark Police Department failed to provide reasonable accommodation for Claimant's disability during her arrest and detention, including by failing to ensure access to her medically necessary equipment and by applying standard detention procedures that failed to account for her documented disability. This constitutes a violation of ADA Title II, 42 U.S.C. § 12132.

Claim 4 — Civil Rights Violation, 42 U.S.C. § 1983 / Monell Policy Liability

The conduct described herein was carried out by officers of the Newark Police Department acting under color of state law and pursuant to, upon information and belief, an official policy, custom, or practice of the City of Newark — specifically, the practice of holding hospitalized detainees in custody without judicial probable cause review pending medical clearance. This policy, if confirmed, caused the constitutional violations described herein. The City of Newark is liable under 42 U.S.C. § 1983 and *Monell v. Department of Social Services*, 436 U.S. 658 (1978).

Claim 5 — New Jersey Civil Rights Act (N.J.S.A. 10:6-1 *et seq.*)

The acts and omissions described herein also constitute violations of the New Jersey Civil Rights Act, N.J.S.A. 10:6-1 *et seq.*, which provides a state law cause of action for violations of rights secured by the New Jersey Constitution and federal law, committed by persons acting under color of law.

V. DAMAGES CLAIMED

- **Compensatory damages** — physical injury, pain and suffering, medical expenses (hospitalization at Clara Maass Medical Center, medications, ENT follow-up), emotional distress, and loss of liberty resulting from the unlawful six-day detention
- **Economic damages** — lost wages, lost income, and any other economic harm flowing from the detention and medical complications
- **Punitive damages** — against Sgt. Rondus and any other individually named officers in their individual capacities only (not against public entities, per N.J.S.A. 59:9-2(c))
- **Attorney's fees and costs** — pursuant to 42 U.S.C. § 1988 and the New Jersey Civil Rights Act
- **All other relief** — Claimant reserves the right to pursue all available remedies at law and in equity

The full amount of damages has not yet been ascertained. Claimant reserves the right to supplement this notice with a specific dollar demand upon completion of investigation, medical records review, and legal consultation. A specific amount will be stated if and as required by applicable law.

VI. ESSEX COUNTY SERVICE ANALYSIS

Essex County involvement is confirmed. PROMIS/Gavel records confirm that Case No. 26004265 was filed in Essex County Superior Court (County Code: ESX). The case was handled by Judge WIGLER, RONALD at a May 26, 2026 hearing and subsequently remanded to Municipal Court. The Essex County Prosecutor's Office has been served on prior related matters (Case No. 23001514, Prosecutor: SIMONETTI, DAWN), and may have jurisdiction over or involvement in the 2026 charges.

Accordingly, this Notice of Claim is being served on Essex County Prosecutor's Office and Essex County Correctional Facility (ECCF) as identified in Section II above. Service on Essex County entities is made pursuant to N.J.S.A. 59:8-7 and N.J.S.A. 59:8-9 as applicable. Claimant reserves the right to add Essex County as a named defendant in any subsequent litigation if discovery confirms direct county involvement in the detention or custodial conditions.

VII. NOTICE REGARDING TIMELINESS

This notice is being prepared for filing within the 90-day notice period mandated by N.J.S.A. 59:8-8, based on an operative incident date of May 6, 2026. The filing deadline is August 4, 2026. Claimant and counsel are advised that N.J.S.A. 59:8-9 provides for a late-filing exception within one year of accrual upon showing of extraordinary circumstances — however, **this exception should NOT be relied upon**. Failure to file within 90 days will require a separate application to a Superior Court judge, with no guarantee of acceptance. File timely.

VIII. PRE-FILING VERIFICATION CHECKLIST — COMPLETE ALL BEFORE MAILING

All items below must be confirmed before this notice is mailed or filed:

- ☐ **Attorney review:** Have a licensed NJ attorney review this notice before mailing. This document is a legal draft, not legal advice.
- ☐ **Confirm service addresses:** Verify current mailing addresses for all six recipients in Section II above.
- ☐ **Confirm Beth Israel dates:** Obtain records from Newark Beth Israel confirming Claimant's dates of detention at that facility (May 6–8, 2026 approximate).
- ☐

Confirm release date from NPD: Obtain arrest paperwork or NPD release documentation confirming release date of May 12, 2026.

- ☐ **Obtain Sgt. Rondus recording:** Secure and preserve any recording of Sgt. Rondus's statement regarding the departmental hold policy. Reference in discovery.
- ☐ **OPRA request:** File OPRA request using Police Case No. C26020536 and SBI No. 721686H for arrest report, BWC footage, and CAD logs.
- ☐ **Public Defender contact:** Call Essex County Public Defender (973) 621-4488 before criminal matter moves further in Municipal Court.
- ☐ **Serve companion Preservation Demand simultaneously:** Mail IKE-TCA-001-PRES on the same date as this notice via CMRRR to all applicable recipients.
- ☐ **CMRRR confirmation:** All service via Certified Mail, Return Receipt Requested. Retain all tracking numbers and signed green cards.
- ☐ **Claimant signature:** Obtain Claimant's signed authorization before mailing.
- ☐ **Date inserted:** Insert actual mailing date in signature block before mailing.
- ☐ **Copy retained:** Retain a signed copy of the mailed notice for Claimant's file.
- ☐ **Log mailing date:** Record the exact mailing date to confirm compliance with the August 4, 2026 deadline.

IX. SERVICE — CERTIFIED MAIL, RETURN RECEIPT REQUESTED (CMRRR)

This notice must be served on each public entity identified in Section II by **Certified Mail, Return Receipt Requested (CMRRR)** pursuant to N.J.S.A. 59:8-7. Service is complete upon mailing. Date of USPS acceptance is the operative date of service. Retain all tracking numbers and signed green-card return receipts as evidence of timely filing.

Serve the companion Emergency Preservation Demand (IKE-TCA-001-PRES) simultaneously, in the same mailing run. Hospitals (Newark Beth Israel and Clara Maass Medical Center/RWJBarnabas) should receive separate CMRRR copies addressed to their respective Legal / Risk Management departments.

X. RESERVATION OF RIGHTS

Claimant expressly reserves all rights under applicable state and federal law. Nothing in this notice shall be construed as a waiver of any right, claim, defense, or remedy. All allegations made herein are stated upon information and belief pending completion of investigation and receipt of discovery. Claimant reserves the right to supplement, amend, or modify this notice upon receipt of additional facts, records, and legal guidance.

XI. SIGNATURE

Date of Mailing: _____

ISIONNAH HOWARD — Claimant

Date of Birth: August 31, 1993

Address: c/o 991 Frelinghuysen Avenue, Apt 1K,
Newark, NJ 07114

Signature of Attorney or Authorized Representative (if applicable)

Print Name: _____

NJ Bar No.: _____

Phone / Email: _____

Document ID: IKE-TCA-001 Rev. 2 | Companion: IKE-TCA-001-PRES | Prepared by IKE Solutions Legal Command Center | June 06, 2026
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